

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following
BACKGROUND

FIRST: On June 22, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against LOCAL VERTICALS, S.L. (hereinafter, the respondent), through the Agreement that is transcribed:

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File No: EXP202212271 (PS/00086/2023)

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions carried out by the Spanish Agency for Data Protection and based on the following:
BACKGROUND

FIRST: On 10/14/22, Ms. A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection. The complaint was directed against the entity, LOCAL VERTICALS, S.L. with CIF: B02789808, owner of the website, ***URL.1 (hereinafter, the complainant), for the alleged violation of data protection regulations: Regulation (EU) 2016/679 of the European Parliament and of the Council, of 04/27/16, regarding the Protection of Natural Persons in relation to the Processing of Personal Data and the Free Movement of such Data (GDPR) and Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), and against Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

The reasons on which the complaint was based were as follows:

- The owner of the website does not provide any information about who owns the website.
- The aforementioned website does not have a privacy policy, not even in the option for users to subscribe to receive newsletters; no privacy policy should be accepted, which makes it unknown how the data provided will be used.
- Upon entering, a huge amount of cookies are downloaded; after rejecting the cookies, nothing happens, and more cookies are downloaded as you navigate through the aforementioned website.

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SECOND: On 11/18/22, in accordance with the provisions of Article 57.1.d) of the GDPR and Article 27.1.a) of Royal Decree 389/2021, of June 1, which approves the Statute of the Spanish Agency for Data Protection, the respondent was informed that a complaint had been received by this Agency stating that the website ***URL.1 could be violating the applicable sectoral regulations regarding the use of storage and data retrieval devices on the terminal equipment of the recipients (cookies), constituted by the LSSI, and warning that, in the event of not adopting the necessary measures to adapt the aforementioned website to what is legally established, it would incur in respective violations of data protection regulations and the LSSI, which could lead to the initiation of the corresponding investigation and sanctioning actions.

THIRD: On 01/23/23, this Agency received a letter sent by the respondent indicating, among other things, the following:

“Following the receipt of this notification, an audit of the use of cookies on the mentioned portal has been conducted, and various improvements have been implemented to achieve an optimal and compliant level with the LSSI.”

FOURTH: On 01/24/23, this Agency received a complaint letter sent by Ms. A.A.A. in which she stated,

among other things, the following:

“(…) The cited website seems to be in violation of the requirements of the LSSI, see the numerous resolutions of this AEPD on this same matter that I have already reported on two occasions, and this constitutes my third letter without this AEPD taking the necessary measures to ensure that the cited website complies with the aforementioned law, allowing users to navigate without cookies that require prior authorization being installed, and just as there is a button to accept cookies, they should also be able to be truly rejected with a single click; the website downloads cookies onto the device just by entering, and even if cookies are rejected, they remain on the device, and they should facilitate the true rejection of cookies with a single click, just as cookies can be accepted with a single click (…).”

FIFTH: On 03/01/23, the Director of the Spanish Agency for Data Protection issued an agreement to admit the claim for processing, in accordance with Article 65 of the LPDGGD, upon finding possible rational indications of a violation of the rules within the scope of the competencies of the Spanish Agency for Data Protection.

SIXTH: On 06/13/23, this Agency accessed the website ***URL.1, confirming the following characteristics regarding its “Privacy Policy” and its “Cookie Policy”:

a).- Regarding the processing of personal data:

a.1.- It is verified that personal data can be obtained on the website through the link <> → <>, located at the top.

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left side of the main page, where personal data such as email can be entered.

Before submitting the registration form with the user's email, the user must check the box:

“_ I have read and accept the <>.

a.2.- Personal data can also be entered through the link <>

☐ <>, located at the top left of the main page, where personal data such as name and email can be entered. There is a “Message” space where the user can enter the text they wish.

b).- Regarding the “Privacy Policy”:

If the “Privacy Policy” is accessed through the link in the registration form, the website redirects the user to the “Privacy Policy” ***URL.2 belonging to another website ***URL.3, different from the one being verified in this file, (***URL.1) as even the identifying data of the website's responsible party are different.

Data of the owner of the website ***URL.3
Owner: Webedia España. CIF: B85399749
Address: Calle ***ADDRESS.1
Email: ***EMAIL.1

There is no link to the “Privacy Policy” of the website ***URL.1, nor any type of information about the responsible party or the processing of personal data obtained through the forms.

c).- Regarding the Cookie Policy:

1.- Regarding the use of cookies before the user gives their consent:

Upon entering the website for the first time, after clearing the terminal equipment of browsing history and cookies, without accepting new cookies or taking any action on the website, it has been verified that cookies that are not technical or necessary are used, with the following characteristics:

Performance cookies

own (3):

These cookies allow quantifying the number of visits and sources of traffic to evaluate the performance of the site. They help to know which pages are the most or least visited and how visitors navigate the website.

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cookies

Domain

Description

_gid

***DOMAIN.1

This cookie is set by Google Analytics. It stores and updates a unique value for each page visited and is used to count and track pages viewed.

gat_UA-212462640-4

***DOMAIN.1

This is a pattern type cookie set by Google Analytics, where the pattern element in the name contains the unique identity number of the account or website it relates to. It is a variation of the _gat cookie that is used to limit the amount of data recorded by Google on high-traffic websites.

_ga

***DOMAIN.1

This cookie name is associated with Google Universal Analytics, which is a major update of Google's most widely used analytics service. This cookie is used to distinguish unique users by assigning a randomly generated number as a client identifier. It is included in each page request on a site and is used to calculate visitor, session, and campaign data for site analytics reports.

Third-party cookies (6): Third-party cookies are snippets of code set by a domain other than the website being visited.

Cookie

Provider

uid

.adform.net

/btrid

.citiservi.es

/freqsegm

.citiservi.es

/btrcr

.citiservi.es

/C

.adform.net

/CONSENT

.youtube.com

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2.- Regarding the cookie information banner on the first layer:

Upon entering the website for the first time, after clearing the terminal equipment of browsing history and cookies, without taking any action on the website, a cookie information banner appears at the bottom of the main page with the following message:

Welcome to Motorpasión!

Please accept the use of cookies to have the best experience on our site.

With your consent, we and our partners use cookies or similar technologies to store, access, and process personal data such as your visit to this website, IP addresses, and cookie identifiers. Some partners do not require your consent to process your data and rely on their legitimate commercial interest. You can withdraw your consent or refuse the processing of data based on your legitimate

interest at any time by clicking on "More information" in our Privacy Policy on this website. See our partners

We and our partners carry out the following data processing:

Store or access information on a device, Personalized ads and content, Measurement of ads and content, Audience insights and product development, Precise geolocation data and identification through device characteristics

<>

<>

If you access the cookie control panel through the <> option, the website displays a new page with the following information:

Welcome to Ceptual Media! Consent Management

We and our partners place cookies, access, and use non-sensitive information from your device to improve our products and personalize ads and other content on this website. You can accept all or part of these operations. For more information about cookies, partners, and how we use your data, to review your options or these operations for each partner, visit our privacy policy.

Skip to "Accept all"

YOU ALLOW

+Store or access information on a device

Reject -- Accept

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+Measure content performance

Reject -- Accept

+Create a personalized advertising profile

Reject -- Accept

+Create a profile for content personalization

Reject -- Accept

+Develop and improve products

Reject -- Accept

+Use market research to generate information about the audience

Reject -- Accept

+Measure ad performance

Reject -- Accept

+Select basic ads

Reject -- Accept

+Select personalized ads

Reject -- Accept

+Select personalized content

Reject -- Accept

+Use precise geographical location data

Reject -- Accept

+Actively analyze device characteristics for identification

Reject -- Accept

If you give your consent for the above purposes, you also allow this website and its partners to process the following data: Match and combine offline data sources, Ensure security, prevent fraud and debug errors, Receive and use device characteristics sent automatically for identification, Technically serve ads or content, and Link different devices

<>

<>

<>

The control panel checks the following characteristics:

- The "Reject" or "Accept" options are not pre-checked in any of the options.
- If you choose to "reject all cookies," it is verified that the website continues to use the same cookies detected initially.
- If you choose to reject certain groups of cookies and accept other groups of cookies, it is verified that there is no option to save and accept preferences.
- If you wish to obtain information about the partners of the website controller, the option "see our partners" displays a list of more than 100 partners. Each of which can be "blocked" or "allowed." There is also a general "Block" option for all partners.

3rd.- Regarding the information provided in the "Cookie Policy":

There is no page or link that redirects the user to the "Cookie Policy." The only existing information about cookies is that provided in the banner on the main page when accessed for the first time and the information offered through the cookie control panel.

4th.- Regarding how to withdraw consent for the use of cookies after having given it:

There is no permanent link on the website that allows the user to access the control panel at any time during web browsing and thus modify their consent regarding cookies.

LEGAL GROUNDS

I.-

Competence:

- Regarding the processing of personal data and the "Privacy Policy":

The Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure, by virtue of the powers recognized to each Control Authority by Article 58.2 of the GDPR, and as established in Articles 47, 64.2, and 68.1 of the LOPDGDD Law.

- Regarding the "Cookie Policy":

The Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure, in accordance with the provisions of Article 43.1, second paragraph, of the LSSI Law.

II.-1

Regarding the processing of personal data on the website and the "Privacy Policy"

In the verification carried out on the website ***URL.1, personal data can be obtained through the link <> ☐ <>, located at the top left of the main page, where personal data such as email can be entered.

Before submitting the registration form with the user's email, they must check the box:

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"_ I have read and accept the <>.

a.2.- Personal data can also be entered through the <>

☐ <>, located at the top left of the main page, where personal data such as name and email can be entered. There is a "Message" space where the user can input the text they wish.

If the "Privacy Policy" is accessed through the link provided in the registration form, the website redirects the user to the "Privacy Policy" ***URL.2 belonging to another website ***URL.3, different from ***URL.1 as even the identifying data of the first is different:

Data of the owner of the website ***URL.3

Owner: Webedia España. CIF: B85399749

Address: Calle ***DIRECCIÓN.1

Email: ***EMAIL.1

There is no link to the "Privacy Policy" of the website ***URL.1, on its main page nor any type of information about the responsible party or the processing of personal data obtained through the forms. Well, Article 13 of the GDPR details the information that must be provided to the data subject when the data is collected directly from them, establishing the following:

"1. When personal data relating to a data subject is obtained from the data subject, the data controller shall provide the following information at the time of obtaining the data: a) the identity and contact

details of the controller and, where applicable, of its representative; b) the contact details of the data protection officer, where applicable; c) the purposes of the processing for which the personal data are intended and the legal basis for the processing; d) when the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or by a third party; e) the recipients or categories of recipients of the personal data, where applicable; f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate or suitable safeguards and the means to obtain a copy of these or the fact that they have been provided.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject, at the time of obtaining the personal data, with the following information necessary to ensure fair and transparent data processing: a) the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period; b) the existence of the right to request from the data controller access to the personal data relating to the data subject.”

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the data subject, and their rectification or deletion, or the limitation of their processing, or to oppose the processing, as well as the right to data portability; c) when the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on consent prior to its withdrawal; d) the right to lodge a complaint with a supervisory authority; e) whether the communication of personal data is a legal or contractual requirement, or a necessary requirement for entering into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of not providing such data; f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and at least in such cases, meaningful information about the logic involved, as well as the significance and the expected consequences of such processing for the data subject.”

In the case at hand, on the website ***URL.1 there is no information regarding the processing of personal data obtained through its forms. There is also no link redirecting the user to its "Privacy Policy." The only link to a "Privacy Policy" is the one found in the "Register" form, but it is verified that this Privacy Policy belongs to a different website, ***URL.3.

II.-2

Proposal for sanction

The irregularities detected in the "Privacy Policy" of the website ***URL.1 may constitute a violation of Article 13 of the GDPR.

This violation may be sanctioned with a fine of up to €20,000,000 or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount, in accordance with Article 83(5)(b) of the GDPR.

In this regard, Article 72(1)(h) of the LOPDGDD considers very serious, for the purposes of prescription, “the omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of the GDPR.”

The balance of the circumstances considered, with respect to the infringement committed, by violating what is established in Article 13 of the GDPR, allows for an initial sanction of €2,000 (two thousand euros).

II.-3

Measures

Paragraphs d) and i) of Article 58(2) of the GDPR provide as follows:

“Each supervisory authority shall have all of the following corrective powers indicated below: (...) “d) to order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time;” “i) to impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in

this paragraph, depending on the circumstances of each particular case;”

In this case, the administrative sanctioning procedure for an administrative fine is invoked, given the category of the data collected and the risks to the rights and freedoms that are thereby compromised. The imposition of adjustment measures in the processing is compatible with the sanction consisting of an administrative fine, as provided for in Article 83(2) of the GDPR.

Therefore, if the infringement is confirmed, it could be agreed to impose on the controller the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with what is established in the aforementioned Article 58(2)(d) of the GDPR, according to which each supervisory authority may “order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time...”, as provided for in Article 83(2) of the GDPR.

In such a case, in the resolution that is adopted, this Agency may require the controller to, within the determined timeframe, adapt the processing operations they carry out to the data protection regulations and the procedure by which they obtain consent for the collection and processing of personal data; all of this within the scope expressed in the Legal Grounds of this agreement and without prejudice to what results from the instruction.

It is warned that failure to comply with the requirements of this body may be considered a serious administrative infringement for “failing to cooperate with the Supervisory Authority” in response to the requests made, and such conduct may be assessed when opening an administrative sanctioning procedure with a monetary fine.

III.-1.

Regarding the Cookie Policy of the website

a) Regarding the installation of cookies on the terminal equipment prior to consent:

Article 22(2) of the LSSI establishes that users must be provided with clear and complete information about the use of data storage and retrieval devices and, in particular, about the purposes of the data processing.

This information must be provided in accordance with the provisions of the GDPR.

Therefore, when the use of a cookie involves processing that enables the identification of the user, the data controllers must ensure compliance with the requirements established by the data protection regulations.

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However, it is necessary to point out that the obligations established in Article 22.2 of the LSSI do not apply to those cookies necessary for the intercommunication of terminals and the network and those that provide a service expressly requested by the user.

In this regard, the GT29, in its Opinion 4/2012, interpreted that among the cookies exempted would be the "User Input Cookies" (those used to fill out forms, or for managing a shopping cart); authentication or user identification cookies (session cookies); user security cookies (those used to detect erroneous and repeated attempts to connect to a website); multimedia player session cookies; load balancing session cookies; user interface personalization cookies; and some plug-in cookies for exchanging social content.

These cookies would be excluded from the scope of application of Article 22.2 of the LSSI, and therefore, it would not be necessary to inform or obtain consent for their use. On the contrary, it will be necessary to inform and obtain the prior consent of the user before using any other type of cookies, whether first-party or third-party, session or persistent.

In the verification carried out by this Agency on the claimed website, it was found that upon entering the main page and without taking any action on it or accepting cookies, the following non-essential cookies were used:

Upon entering the website for the first time, without accepting cookies or taking any action on the page, it has been verified that cookies that are not technical or necessary are used:

- 3 Own performance cookies: _gid; gat_UA-212462640-4 and _ga.
- 6 Third-party cookies: The cookies "uid" and "C" from the provider ".adform.-net"; the cookies "btrid"; "freqseg" and "btrcr" from the provider ".citiservi.es" and the cookie "CONSENT" from the provider ".youtube.com"

c).- Regarding consent for the installation of cookies on the terminal equipment:

For the use of non-exempt cookies, it will be necessary to obtain the user's express consent. This consent can be obtained by clicking on "accept" or inferring it from an unequivocal action taken by the user that indicates that consent has been unequivocally given. Therefore, mere inactivity of the user, scrolling, or browsing the website will not be considered, under any circumstances, a clear affirmative action for these purposes and will not imply the granting of consent by itself. Similarly, access to the second layer if the information is presented in layers, as well as the navigation necessary for the user to manage their preferences regarding cookies in the control panel, is also not considered an active behavior from which cookie acceptance can be derived.

The existence of "Cookie Walls" is also not permitted, that is, pop-up windows that block content and access to the website, forcing the user to accept the use of cookies in order to access the page and continue browsing without.

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to offer the user no type of alternative that allows them to freely manage their preferences regarding the use of cookies.

If the option is to direct to a second layer or cookie control panel, the link must take the user directly to that configuration panel. To facilitate selection, in the panel, in addition to a granular cookie management system, two more buttons may be implemented: one to accept all cookies and another to reject them all. If the user saves their choice without having selected any cookies, it will be understood that they have rejected all cookies. In relation to this second possibility, pre-checked boxes in favor of accepting cookies are not admissible under any circumstances.

If for cookie configuration, the website refers to the settings of the browser installed on the terminal device, this option could be considered complementary for obtaining consent, but not as the only mechanism. Therefore, if the publisher opts for this option, they must also offer, in any case, a mechanism that allows rejecting the use of cookies and/or doing so granularly.

On the other hand, the withdrawal of previously granted consent by the user must be able to be carried out at any time. To this end, the publisher must provide a mechanism that enables easy withdrawal of consent at any time. It will be considered that such ease exists, for example, when the user has simple and permanent access to the cookie management or configuration system.

If the publisher's cookie management or configuration system does not allow avoiding the use of third-party cookies once accepted by the user, information about the tools provided by the browser and third parties will be provided, warning that if the user accepts third-party cookies and subsequently wishes to delete them, they must do so from their own browser or the system enabled by third parties for that purpose.

In the case at hand, it is not possible to reject all cookies at once in the information banner that exists on the main page. To manage cookies, it is necessary to access the control panel where the groups of cookies appear divided by purposes.

There are two options for managing cookies: the first is to reject all cookies or accept all cookies. If one wishes to reject all cookies, it is verified how the website continues to use the same cookies detected at the beginning. There is a second option, which is to accept or reject each group of cookies.

However, if one wishes to accept certain groups of cookies and reject others, there is no option to save and apply the selected choices.

d).- Regarding the information provided in the second layer (cookie policy):

In the second layer or "cookie policy," more detailed information must be provided about the characteristics of cookies, including information about the definition and generic function of cookies

(what cookies are); about the type of cookies

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that are used and their purpose (what types of cookies are used on the website); the identification of who uses the cookies, that is, whether the information obtained by the cookies is processed only by the publisher and/or also by third parties with identification of these latter; the retention period of the cookies on the terminal equipment; and if applicable, information about data transfers to third countries and the profiling that involves automated decision-making.

In the case at hand, there is no information about cookies in the second layer or link that allows the user to redirect to the "Cookie Policy" of the website. The information about cookies appears in a scattered manner in each of the options of the control panel.

IV.-2

Classification of the possible infringement committed

From the deficiencies detected regarding the cookie policy on the website in question: the use of third-party cookies that are not technical or necessary; the impossibility of rejecting third-party cookies and the lack of information in the "cookie policy," could imply on the part of the respondent, the commission of the infringement of Article 22.2 of the LSSI, as it establishes that:

"Service providers may use storage and data retrieval devices on the terminal equipment of the recipients, provided that they have given their consent after being provided with clear and complete information about their use, in particular, regarding the purposes of data processing, in accordance with the provisions of Organic Law 15/1999, of December 13, on the protection of personal data.

When technically possible and effective, the recipient's consent to accept data processing may be provided through the appropriate parameters of the browser or other applications.

The above shall not prevent the possible storage or technical access solely for the purpose of carrying out the transmission of a communication over an electronic communications network or, to the extent strictly necessary, for the provision of a service of the information society expressly requested by the recipient."

IV.-3

Proposal and grading of the sanction

This infringement is classified as "minor" in Article 38.4 g) of the aforementioned Law, which considers as such: "Using storage and data retrieval devices when the information has not been provided or the consent of the service recipient has not been obtained in the terms required by Article 22.2," and may be sanctioned with a fine of up to €30,000, in accordance with Article 39 of the aforementioned LSSI. Following the evidence obtained in the preliminary investigation phase, and without prejudice to what results from the instruction, it is considered appropriate to grade the sanction to impose in accordance with the following aggravating criteria, established by Article 40 of the LSSI: The existence of intent, a term that must be interpreted as equivalent to the degree of culpability according to the Judgment of the National Court of 12/11/07 in Case No. 351/2006, corresponding to the reported entity the determination of a system for obtaining informed consent that complies with the mandate of the LSSI. According to these criteria, it is deemed appropriate to impose an initial sanction of €2,000 (two thousand euros) for the infringement of Article 22.2 of the LSSI, regarding the cookie policy implemented on the website owned by it.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

TO INITIATE: SANCTIONING PROCEDURE against the entity, LOCAL VERTICALS, S.L. with CIF: B02789808, owner of the website, ***URL.1

a).- Infringement of Article 13 of the GDPR, due to the deficiencies observed in its "Privacy Policy."

b).- Infringement of Article 22.2 of the LSSI, due to the deficiencies detected on its website regarding the "Cookie Policy."

TO APPOINT: as Instructor Mr. B.B.B., and Secretary, if applicable, Ms. C.C.C., indicating that either of them may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

TO INCORPORATE: into the sanctioning file, for evidentiary purposes, the complaint filed by the complainant and its documentation, the documents obtained and generated by the General Subdirectorate of Data Inspection during the investigation phase, all of which are part of this administrative file.

THAT: for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be a).- €2,000 (two thousand euros), for the infringement of Article 13 of the GDPR, without prejudice to what results from the instruction of this file.

b).- €2,000 (two thousand euros), for the infringement of Article 22.2 of the LSSI, without prejudice to what results from the instruction of this file.

The total sanction that may correspond would be: €4,000 (four thousand euros).

TO NOTIFY: this agreement to initiate the sanctioning file to the entity, LOCAL VERTICALS, granting it a hearing period of ten working days to submit any allegations and present any evidence it deems appropriate.

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If no allegations are made regarding this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, if the sanction to be imposed is a fine, you may acknowledge your responsibility within the period granted for making allegations to this initiation agreement; this will entail a reduction of 20% of the sanction to be imposed in this procedure, which in this case amounts to 800 euros. With the application of this reduction, the sanction would be set at 3,200 euros, concluding the procedure with the imposition of this sanction.

Similarly, you may, at any time prior to the resolution of this procedure, make a voluntary payment of the proposed sanction, which will imply a reduction of 20% of its amount, equivalent in this case to 800 euros. With the application of this reduction, the sanction would be set at 3,200 euros, and its payment will imply the termination of the procedure.

The reduction for the voluntary payment of the sanction is cumulative with the one applicable for the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations regarding the initiation of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at 2,400 euros (two thousand four hundred euros).

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction.

If you choose to proceed with the voluntary payment of any of the amounts indicated above, you must make it effective by depositing it into account No. ES00 0000 0000 0000 0000 0000 opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are entitled.

You must also send the proof of payment to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement or, if applicable, from the draft initiation agreement. Once this period has elapsed, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Mar España Martí

Director of the Spanish Agency for Data Protection.

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SECOND: On July 4, 2023, the respondent has proceeded to pay the sanction in the amount of 2,400 euros, making use of the two reductions provided in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to formulate allegations regarding the initiation of the procedure, entails the waiver of any action or administrative appeal against the sanction and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

LEGAL GROUNDS

I

Competence

According to the provisions of Article 43.1 of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (hereinafter LSSI), the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) to each supervisory authority, and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the powers attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions of Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the powers attributed to it by other laws."

II

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Termination of the Procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in Sanctioning Procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another of a non-pecuniary nature but the latter has been justified as inappropriate, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which may

be cumulative. The aforementioned reductions must be specified in the notification of the initiation of the procedure and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation.”

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202212271, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to LOCAL VERTICALS, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

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